

omitted].) The injury is not necessarily the ultimate harm suffered, but it is, rather, instead at the point where “appreciable harm” is first manifested. (*Ibid.*) “An injury manifests when damage is ‘evidenced in some significant fashion; when the damage has clearly surfaced and is noticeable.’” (*Filosa, supra*, 59 Cal.App.5th at p. 779 [internal citation omitted].)

Among other cases, Plaintiff cites *Steingart v. White* (1988) 198 Cal.App.3d 406. The Court finds the *Steingart* case instructive: In *Steingart*, plaintiff discovered a lump in her breast, which the defendant doctor diagnosed as a benign condition in February 1982. The plaintiff, however, was suspicious about the diagnosis and saw a second doctor a few months later. She received a mammogram, which was negative for cancer. (*Steingart, supra*, 198 Cal.App.3d at pp. 409-410.) In 1984, she went to another doctor, who ordered another mammogram, which was again negative. (*Id.* at p. 410.) Importantly, however, it was not until April of 1985 that the *Steingart* plaintiff notice a change in the contour of her breast and was then found to have state II breast cancer. (*Ibid.*)

The plaintiff in *Steingart* filed her action in March of 1986 – more than four years after the initial examination but within one year of the diagnosis of breast cancer. (*Ibid.*) The trial court in *Steingart* granted summary judgment on the basis of the statute of limitations. However, the Court of Appeals reversed. In the decision, the *Steingart* court rejected the defendant’s argument that the plaintiff suffered an injury at the time the defendant examined her in 1982. Instead, it concluded that, although the plaintiff knew about the lump at the time of the 1982 exam, “such a condition is not a clear indication of injury, either damaging effect or appreciable harm.” (*Steingart, supra*, 198 Cal.App.3d at pp. 414-415.) Indeed, the plaintiff “was told repeatedly the lump was nonthreatening” such that no appreciable harm was manifested from the doctor’s asserted neglect until her cancer was discovered in April 1985. (*Ibid.*)

Here, looking at the pleadings, Plaintiff alleges sufficiently that no appreciable harm was manifested from Defendant Yacoub’s alleged negligence until *after* the results of his January 2025 MRI. Plaintiff alleges that Defendant Yacoub diagnosed him with two torn peroneal tendons and recommended surgery to repair both tendons; however, Defendant failed to inform Plaintiff that he had two torn tendons and only repaired one tendon. (Compl., ¶16.) After the surgery, Plaintiff remained in pain and discomfort. He routinely went back to see the Defendant doctor but was informed that the pain was normal and simply received pain medications. (Compl., ¶17.) Later, given that the pain was not subsiding, Plaintiff visited another physician for a second opinion in October 2024, and an MRI was completed in January 2025. The results of the MRI showed that he still had a torn tendon which was the cause of his pain. It was this that led to the discovery that Defendants failed disclose that he had torn two tendons and that only one was repaired. (Compl., ¶17.)

Accordingly, the case is similar to *Steingart* in that Plaintiff continued to have concerns that were – per the allegations – misdiagnosed by his physician. He was told that the pain was not concerning and was “normal” and was simply prescribed pain medication. Thus, the pleadings assert that no appreciable harm manifested from the physician’s asserted negligence until the MRI.

14. *Aguirre v. Chaung*, Case No. CIVSB2516207

Plaintiff's Motion to Compel Initial Responses to Requests for Production, Set Two

Plaintiff's Motion to Compel Initial Responses to Form Interrogatories, Set One

Plaintiff's Motion to Deem as Admitted Requests for Admissions, Set One

8/12/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would deem the motion to compel responses to the Requests for Production, Set Two (RFP2) as **MOOT**. The Court would **GRANT** the motion to compel responses to Form Interrogatories, Set One (FROG1). Such responses will be due within thirty days. Finally, the Court would deem the Requests for Admissions, Set One (RFA1) as admitted, unless responses have been provided prior to hearing.

The Court would also impose sanctions against Defendant for these motions in the amount of \$1,180. Sanctions are payable to Plaintiff within thirty days.

Analysis

Relevant here, Plaintiff served FROG1 and RFA1 on Defendant on November 25, 2025. (Wurm FROG1 Decl., ¶12 & Exh. A; Wurm RFA Decl. ¶12 & Exh. A.) Thus, those responses were due on December 31, 2025. (*Ibid.*) Plaintiff served the RFP2 on Defendant by mail on December 5, 2025. (Wurm RFP2 Decl., ¶12 & Exh. A.) Defendant's response to RFP2 was provided on December 9, 2025, but it was inclusive of only requests 6 through 45, with no responses to requests 46 through 53. (*Ibid.*) Further, there was no verification.

On June 5, 2026, Plaintiff filed these motions. Defendant, who is self-represented, filed an opposition only to the motion to compel RFP2 responses. The other two motions are unopposed.

As to RFP2 – The parties now agree that Defendant has now properly responded to the subject RFP2, leaving only the issue of sanctions to be decided.

As to FROG1 – The Court would grant and order responses provided within thirty days. Here, there is no opposition. As the motion is unopposed, it appears the arguments set forth therein are conceded. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue.”]; see *Pacifica First National, Inc. v. Abekasis* (2021) 50 Cal.App.5th 654, 657 [Not returning to a topic on reply, “is a concession.”].) Thus, the Court would grant and order responses within thirty days.

As to RFA1 – While the Court is inclined to grant, it would proceed with caution and inquire as to the status of any response.

“The law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure.” (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 394, disapproved on other grounds *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) “There is no relief under section 473.” (*Ibid.*) “The defaulting party is limited to the remedies available in (CCP § 2033.280).” (*Ibid.*) “The propounding party need give no warning (at least according to one well-respected authority) – it simply files a motion to deem the matters covered by the requests admitted.” (*Demyer, supra*, 36 Cal.App.4th at p. 395.) “The nonresponding party then has until the ‘hearing on the

motion' to serve responses to the admissions request." (*Ibid.*) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion." (*Ibid.*) "But woe betide the party who fails to serve responses before the hearing." (*Ibid.*) "In that instance the court has no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party." (*Demyer, supra*, 36 Cal.App.4th at pp. 395-396.)

Presuming no response has been provided prior to hearing, and acknowledging no opposition has been filed, the Court would grant.

As to Sanctions – Defendant argues that the failure to respond to RFP2 requests 46 through 53 was a clerical oversight. Therefore, he asserts that sanctions would be improper in light of the late-served responses. While the Court is inclined to grant some leeway for a clerical error, Defendant still fails to explain the delay following being notified of the missing responses. Plaintiff reasonably filed the motion over four months *later* – on June 5 – after still having not received the responses. Further, the motions as the FROG1 and RFA1 responses are unopposed and granted. Thus, some sanctions appear warranted.

Notably, while Plaintiff requests \$1,155 for *each* motion, the Court would reduce the sanction to \$1,180. These motions are fairly routine and largely duplicative. Moreover, secretarial work is more properly incorporated into the attorney rate as overhead. The figure of \$1,180 reflects \$1,000 in attorneys' fees plus the \$60 filing fee for each motion.
